



File No.: EXP202210932

## RESOLUTION OF FILE OF ACTIONS

From the actions carried out by the Spanish Agency for Data Protection and based on the following

### FACTS

FIRST: On September 20, 2022, a complaint was filed with entry registration number REGAGE22e00041247371 before the Spanish Agency for Data Protection against VODAFONE ESPAÑA, S.A.U. with NIF A80907397 (hereinafter, the complained party). The reasons for the complaint are as follows:

The complainant submits a complaint regarding the receipt of commercial calls on their mobile lines (\*\*PHONE.1, \*\*PHONE.2, and \*\*PHONE.3) registered in the Robinson List service and despite the request for the deletion of the complainant's personal data being attended to by the complained entity on March 18, 2022.

Along with the notification, the following is provided:

- Copy of the deletion request submitted by the complainant, response addressing the exercised right.
- Screenshots confirming the receipt of three calls on July 6, September 12, and September 14, 2022, from the calling lines \*\*PHONE.4, \*\*PHONE.5, and \*\*PHONE.6.
- Copy of the recordings of the calls received from the lines \*\*PHONE.4 and \*\*PHONE.5 in which the interlocutor identifies themselves as from the complained entity, attempting to offer their telephony services.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the complained party, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on October 24, 2022, as noted in the acknowledgment of receipt in the file.

On November 28, 2022, a response was received by this Agency indicating:

"After conducting the appropriate checks, we have verified that the complainant's telephone lines, \*\*PHONE.1, \*\*PHONE.2, and \*\*PHONE.3, are listed in the official Robinson list of ADigital and in Vodafone's internal Robinson list."

"We have checked whether the indicated calling numbers in the information request appear in our database with the telephone numbers used by our collaborators to make solicitation calls. To this end, we have verified that there are no numbers associated with our collaborators that make solicitation calls on behalf of Vodafone in our database. Therefore, it does not seem possible to relate the receipt of the calls that Ms. A.A.A. mentions in her complaint with my represented party."

"....., currently Vodafone has ceased to work with those entities that have repeatedly violated the contractual obligations established by Vodafone, as well as the legal provisions regarding data protection, and is in the process of selecting those collaborators that guarantee full compliance with current regulations."

THIRD: On December 2, 2022, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

FOURTH: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following points:

### RESULT OF THE INVESTIGATION ACTIONS

As a result of the investigations carried out, the following information has been obtained:

- Through information obtained from the numbering registry on the website of the "Association of

Operators for Portability,” www.portanet.net, it is verified that, as of the investigation date of this file, the operators of the originating numbers of the calls were:

\*\*\*PHONE.7

VODAFONE ONO

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\*\*\*PHONE.8 MASVOZ INTERACTIVE TELECOMMUNICATIONS, S.L.U.

\*\*\*PHONE.4 LEAST COST ROUTING TELECOM

\*\*\*PHONE.5 LEAST COST ROUTING TELECOM

\*\*\*PHONE.6 LEAST COST ROUTING TELECOM

In reference to the claimed number \*\*\*PHONE.7:

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From the response to the requests made, it is concluded that the ownership flow of the telephone line was:

VODAFONE ONO -> AKRA LEUKA CONSULTING -> JESCOM SARL AU (Morocco)

In response to a request for information (date 13/02/2023 and registration No.

REGAGE23s00009027293) sent to VODAFONE ONO requesting confirmation of the receipt on the claimant's numbers of the call made by line \*\*\*PHONE.7, they limited their response (date 08/03/2023 and registration No. REGAGE23e00014439154) to stating that the claimed number belonged to AKRA LEUKA instead of answering (since LOWI is the operator of the claimant's numbers) whether the calls were received or not.

The same request was resent (date 12/05/2023 and registration No. REGAGE23s00030598985) from which the same response was received (date 22/05/2023 and registration No.

REGAGE23e00032372663) as the original request.

AKRA LEUKA CONSULTING indicates that they have no record of the calls.

A request was sent by international certified mail to JESCOM SARL AU, requesting the reason for the calls, which was returned by the postal service.

In reference to the claimed number \*\*\*PHONE.8:

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From the response to the requests made, it is concluded that the ownership flow of the telephone line was:

MASVOZ INTERACTIVE TELECOMMUNICATIONS -> TWILIO INC. (USA)

In response to a request for information (date 13/02/2023 and registration No.

REGAGE23s00009027293) sent to VODAFONE ONO requesting confirmation of the receipt on the claimant's numbers of the call made by line \*\*\*PHONE.7, they limited their response (date 08/03/2023 and registration No. REGAGE23e00014439154) to stating that the claimed number belonged to AKRA LEUKA instead of answering (since LOWI is the operator of the claimant's numbers) whether the calls were received or not.

The same request was resent (date 12/05/2023 and registration No. REGAGE23s00030598985) from which the same response was received (date 22/05/2023 and registration No.

REGAGE23e00032372663) as the original request.

MASVOZ indicates that they have no record of the calls.

A request was sent by international certified mail to TWILIO INC. (USA), requesting the reason for the calls, which was returned by the postal service.

In reference to the claimed number \*\*\*PHONE.4:

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From the response to the requests made, it is concluded that the ownership flow of the telephone line was:

LEAST COST ROUTING TELECOM -> NETVOISS -> MIDAS SOLUTIONS CENTER E.I.R.L (PERU)

In response to a request for information (date 13/02/2023 and registration No.

REGAGE23s00009027293) sent to VODAFONE ONO requesting confirmation of the receipt on the claimant's numbers of the call made by line \*\*\*PHONE.7, they limited their response (date 08/03/2023 and registration No. REGAGE23e00014439154) to stating that the claimed number belonged to AKRA LEUKA instead of answering (since LOWI is the operator of the claimant's numbers) whether the calls were received or not.

The same request was resent (date 12/05/2023 and registration No. REGAGE23s00030598985) from which the same response was received (date 22/05/2023 and registration No.

REGAGE23e00032372663) as the original request.

LEAST COST confirms the making of the call to number \*\*\*PHONE.1.

A request was sent by international certified mail to MIDAS SOLUTIONS, requesting the reason for the calls, which has delivery confirmation on 08-03-2023 and from which no response has been received.

In reference to the claimed number \*\*\*PHONE.5:

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From the response to the requests made, it is concluded that the ownership flow of the telephone line was:

LEAST COST ROUTING TELECOM -> NETVOISS -> MIDAS SOLUTIONS CENTER E.I.R.L (PERU)

In response to a request for information (date 13/02/2023 and registration No.

REGAGE23s00009027293) sent to VODAFONE ONO requesting confirmation of the receipt on the claimant's numbers of the call made by line \*\*\*PHONE.7, they limited their response (date 08/03/2023 and registration No. REGAGE23e00014439154) to stating that the claimed number belonged to AKRA LEUKA instead of answering (since LOWI is the operator of the claimant's numbers) whether the calls were received or not.

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The same request is forwarded (dated 12/05/2023 and Registration No. REGAGE23s00030598985) from which the same response is received (dated 22/05/2023 and Registration No.

REGAGE23e00032372663) as the original request.

LEAST COST confirms the making of the call to the number \*\*\*TELÉFONO.3.

A request was sent by international certified mail to MIDAS SOLUTIONS, requesting the reason for the calls, which has delivery confirmation on 08-03-2023 and from which no response has been received.

Regarding the claimed number \*\*\*TELÉFONO.6:

- From the response to the requests made, it is concluded that the flow of ownership of the telephone line was:

LEAST COST ROUTING TELECOM -> NETVOISS -> COMERCIALIZADORA SYR CENTER 2020, C.A

A request for information (dated 13/02/2023 and Registration No. REGAGE23s00009027293) was sent to VODAFONE ONO requesting confirmation of the receipt of the call made to the claimant's numbers from the line \*\*\*TELÉFONO.7; they limited their response (dated 08/03/2023 and Registration No. REGAGE23e00014439154) to stating that the claimed number belonged to AKRA LEUKA instead of answering (since LOWI is the operator of the claimant's numbers) whether the calls had been received or not.

The same request is forwarded (dated 12/05/2023 and Registration No. REGAGE23s00030598985) from which the same response is received (dated 22/05/2023 and Registration No.

REGAGE23e00032372663) as the original request.

LEAST COST confirms the making of the call to the number \*\*\*TELÉFONO.2.

A request was sent by international certified mail to COMERCIALIZADORA SYR CENTER 2020, requesting the reason for the calls, from which no response or delivery confirmation has been received.

LEGAL GROUNDS

I

## Competence

According to the provisions established in Article 114.1.b) of Law 11/2022, of June 28, General Telecommunications Law (hereinafter LGTel) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the Fourth Additional Provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its development regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in exercising the competencies attributed to it by other laws."

II

## Final Provision Six, Section 2 of LGTel 11/2022

"The right of end users not to receive unwanted calls for commercial communication purposes as provided in Article 66.1.b) shall come into force within one year from the publication of this law in the 'Official State Gazette.' Until that moment, end users of publicly available interpersonal communication services based on numbering may continue to exercise the right to oppose receiving unwanted calls for commercial communication purposes made through systems other than those established in Article 66.1.a) and to be informed of this right."

III

## Conclusion

Through the investigations carried out by this Agency, it has been determined that:

Regarding the number \*\*\*TELÉFONO.8, it cannot be concluded what the reason for the call was since the final holder TWILIO INC, located in the USA, did not respond to the information request, making it impossible to determine that it is the final responsible party for the claimed call.

Regarding the number \*\*\*TELÉFONO.7, it cannot be concluded what the reason for the call was since the final holder JESCOM SARL AU, located in Morocco, did not respond to the information request, making it impossible to determine that it is the final responsible party for the claimed call. Additionally, it should be noted that this Agency does not have jurisdiction over companies located in the Kingdom of Morocco.

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Regarding the number \*\*\*PHONE.6, it cannot be concluded what the reason for the call was, as the final holder COMMERCIALIZADORA SYR CENTER 2020, C.A. located in Venezuela did not respond to the request for information, making it impossible to determine that it is the final responsible party for the claimed call. Furthermore, it should be noted that this Agency does not have jurisdiction over companies located in Venezuela.

Regarding the numbers \*\*\*PHONE.4 and \*\*\*PHONE.5, it cannot be concluded what the reason for the calls was, as the final holder MIDAS SOLUTIONS located in Peru has not responded to the request for information. It is worth mentioning that the calling entity is located in Peru and that representatives of the company have not been located in the European Union, thus it should be noted that the LGT does not confer the Spanish Agency for Data Protection with jurisdiction over a company located in Peru. Therefore, in accordance with what has been stated, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to VODAFONE ESPAÑA, S.A.U. and to the complaining party. In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

940-020323

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